

24STCV34511 24STCV34511

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-07

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Case Number: 24STCV34511 Hearing Date: August 7, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Jaime Bennett

;

Plaintiff,

vs.

General Motors, LLC

;

Defendant.

Case No.:

24STCV34511

Hearing Date:

August 7, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

(1) Demurrer
to First Amended Complaint

(2) Motion
to Strike Portions of First Amended Complaint

MOVING PARTY: Defendant General Motors, LLC

RESPONDING

PARTY: Plaintiff Jaime Bennett

(1) Demurrer
to First Amended Complaint

(2) Motion
to Strike Portions of First Amended Complaint

The court considered the moving,
opposition, and reply papers filed in connection with these motions.

DISCUSSION

Demurrer to First Amended
Complaint

Defendant
General Motors, LLC ("Defendant") demurs to the fifth cause of action for
fraudulent concealment alleged by plaintiff Jaime Bennett ("Plaintiff") in the
First Amended Complaint.

The court
sustains Defendant's demurrer to the fifth cause of action for

fraudulent inducement – concealment because it does not state facts sufficient to constitute a cause of action since Plaintiff has not alleged that Defendant had a duty to disclose the facts regarding the subject defects in the vehicle, including because Plaintiff has not alleged facts establishing that Plaintiff purchased the vehicle directly from Defendant or its agent and that, during the course of those direct dealings, Defendant concealed facts regarding the defects from Plaintiff. (Code Civ.

Proc., § 430.10, subd. (e); Rattagan v. Uber Technologies, Inc. (2024)

17 Cal.5th 1, 40-41 [circumstances imposing a duty to disclose “presuppose a preexisting relationship between the parties” which “must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large”]; Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, 844, review dismissed Dec. 18, 2024 [finding complaint sufficient and declining to hold claim barred on the ground that there was no relationship requiring Nissan to disclose known defects where plaintiffs alleged they bought the car from a Nissan dealership, that Nissan backed the car with its warranty, and Nissan’s authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers].)

The burden is on

the plaintiff “to articulate how it could amend its pleading to render it sufficient.” (Palm

Spring Villages II Homeowners Assn., Inc. v. Parth (2016) 248 Cal.App.4th 268, 290.) To satisfy

that burden, a plaintiff “must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.” (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349.)

The court finds that Plaintiff has not

articulated the facts that Plaintiff could allege to render this cause of action against Defendant sufficient and therefore sustains the demurrer without leave to amend.

Motion to Strike Portions of
First Amended Complaint

Defendant moves

the court for an order striking from the First Amended Complaint Plaintiff’s prayer for punitive damages.

The court grants

Defendant’s motion to strike Plaintiff’s prayer for punitive damages because

Plaintiff has not alleged facts establishing that Defendant is guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) The court grants Defendant's motion without leave to amend because Plaintiffs have not articulated the facts that they could allege to render their claim for punitive damages sufficient against Defendant. (Palm Springs Villas II Homeowners Assn., Inc., supra, 248 Cal.App.4th at p. 290.)

ORDER

The court SUSTAINS defendant General Motors, LLC's demurrer to plaintiff Jaime Bennett's fifth cause of action without leave to amend.

The court GRANTS defendant General Motors, LLC's motion to strike without leave to amend. The court orders that the prayer for punitive damages set forth on page 14, section g line 1 of the First Amended Complaint filed by plaintiff Jaime Bennett is stricken.

The court orders defendant General Motors, LLC to serve and file an answer to plaintiff Jaime Bennett's First Amended Complaint within 10 days of the date of this order.

The court orders defendant General Motors, LLC to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 7, 2026

Robert B. Broadbelt III

Judge of the Superior Court